

Section 122 empowers the Central Government to make rules to carry out the purposes of Chapter XII. The matters in respect of which rules shall be made by the Central Government are enumerated in detail in sub-section (2) of this clause.

CHAPTER XIII

Liability of Railway Administration for Death and injury to passengers due to accidents.

123. Definitions. In this Chapter , unless the context otherwise requires,--

- (a) “accident” means an accident of the nature described in Sec.124:
- (b) “dependant” means any of the following relatives of a deceased passenger, namely:-
 - (1) the wife, husband , son and daughter, and in case the deceased passenger is unmarried or is a minor, his parent:
 - (2) the parent, minor brother or unmarried sister, widowed sister, widowed daughter-in-law and a minor child or a predeceased son, if dependent wholly or partly on the deceased passenger:
 - (3) a minor child of a pre-deceased daughter, if wholly dependent on the deceased passenger:
 - (4) the paternal grand parent wholly dependent on the deceased passenger.

2© “Untoward incident” means –

- (1)(i) the commission of a terrorist act within the meaning of sub-section (1) of sec. 3 of the Terrorist and Disruptive Activities (Prevention) Act, 1987 (28 of 1987),
or
- (ii) the making of violent attack or the commission of robbery or dacoity;
or
- (iii) the indulging in rioting, shoot-out or arson.

By any person in or on any train carrying passengers, or in a waiting hall, cloak room or reservation or booking office or on any platform or in any other place within the precincts of a railway station: or

- (2) the accidental falling of any passenger from a train carrying passengers.)

COMMENTS

Section 123 deals with and defines the various words and expressions used in Chapter XIII.3

Other wise. - The word 'other wise' is not to be construed ejusdem generis with the words "Circulars, advertisements".4

124. Extent of liability. - when in the course of working a railway, an accident occurs, being either a collision between trains of which one is a train carrying passengers or the derailment of or other accident to train or any part of a train carrying passengers, then whether or not there has been any wrongful act, neglect or default on the part of the railway administration such as would entitle a passenger who has been injured or has suffered a loss to maintain an action and recover damages in respect thereof, the railway administration shall, notwithstanding anything contained in any other law, be liable to pay compensation to such extent as may be prescribed and to that extent only for loss occasioned by the death of a passenger dying as a result of such accident, and for personal injury and loss, destruction, damage or deterioration of goods owned by the passenger and accompanying him in his compartment or on the train, sustained as a result of such accident.

Explanation.- For the purpose of this section "passenger" includes a railway servant on duty.

Comments

Section 124 provides for the extent of liability of the railway administration in case of death or injury to a passenger or damage to his goods in an accident.1

Accident – Meaning. – Perusal of the Sec.82-A of the old Act shows that it contemplates liability of railway administration in respect of accidents to train carrying passengers. In particular it shows that the accident contemplated therein is an accident which has occurred due to other collision between trains of which one is a train carrying passengers, or the derailment of or other accidents to a train or any part of a train carrying passengers. The emphasis in Sec.82.A is upon the accident to the train . If there is an accident to the train as contemplated therein, then notwithstanding the fact that there has been no wrongful act, neglect or default on the part of the railway administration, any passenger in such a train who has been injured or who has suffered loss in such accident to the train is entitled to maintain an action and recover compensation from the railway administration concerned, in respect of the injury or loss suffered by him. In the new Railway Act, the provisions in this regard are made in Sec.124 thereof.2